

24CMCV01813 24CMCV01813

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-24

Motion: (1) PLAINTIFF'S MOTION TO COMPEL FURTHER REPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT RIZZA WALKER; (2) PLAINTIFF'S MOTION TO COMPEL FURTHER REPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT DOUG THOMPSON; AND (3) PLAINTIFF'S MOTION TO TAX COSTS CLAIMED BY DEFENDANT WFG NATIONAL TITLE INSURANCE COMPANY DATE: June 24, 2026 TIME: 8:30 A.M.

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Case Number: 24CMCV01813 Hearing Date: June 24, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL

DISTRICT

MARDARIOUS

TYSON, an individual,

Plaintiff,

vs.

CYNTHIA CORREA, an

individual; COLDWELL BANKER REALTY, a California corporation; AMANDA J.

POTIER, an individual; ADRIANA MUNOZ (formerly Adriana Hernandez), an

individual; OLIVIA MERCER, an individual; WEST COAST ESCROW, a California

corporation; PABLO SAHAGUN, an individual; YVETTE E. RIOS, an individual; and

DOES 1-10, inclusive,

Defendants.

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CASE

NO: 24CMCV01813

[TENTATIVE] ORDER RE: (1) PLAINTIFF'S

MOTION TO COMPEL FURTHER REPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS

FROM DEFENDANT RIZZA WALKER; (2) PLAINTIFF'S MOTION TO COMPEL FURTHER

REPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT DOUG

THOMPSON; AND (3) PLAINTIFF'S MOTION TO TAX COSTS CLAIMED BY DEFENDANT WFG

NATIONAL TITLE INSURANCE COMPANY

DATE: June 24, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff

Mardarious Tyson

(All Motions)

Responding Parties: Defendant

Rizza Walker (Motion to Compel - Walker)

Defendant

Doug Thompson (Motion to Compel - Thompson)

Defendant

National Title Insurance Company (Motion to Tax)

Notice: Ok

Tentative Rulings: (1)

Plaintiff's Motion to Compel Further Responses to Requests for Production of

Documents from Defendant Rizza Walker is DENIED. Plaintiff's requests for

sanctions is DENIED;

(2)

Plaintiff's Motion to Compel Further Responses to Requests for Production of

Documents from Defendant Doug Thompson is DENIED. Plaintiff's requests for

sanctions is DENIED;

(3)

Walker and Thompson's Requests for Sanctions are GRANTED IN REDUCED AMOUNTS;

and

(4) Plaintiff's Motion to Tax Costs Claimed by Defendant WFG

National Title Insurance Company is GRANTED IN PART.

I.

BACKGROUND

This is an action for, among

other things, civil fraud arising from an alleged conspiracy to effectuate

an unauthorized sale of Plaintiff's leased property located at 15000 Downey

Ave, Unit #218, Paramount, CA 90723 (the "Property"). Plaintiff Mardarious Tyson

("Plaintiff" or "Tyson") alleges that he merely leased, and did not own,

the Property. At the time of the at-issue transaction, Tyson alleges

that Defendant Cynthia Correa ("Correa") was an affiliate of

Defendant Coldwell Banker Realty ("Coldwell") and was acting as

Tyson's real estate agent. Tyson alleges that

he was induced by Correa, working in collusion with

other named Defendants, into executing fraudulent and legally void

documents to effectuate the sale of the Property (the "Real Estate

Purchase Agreement").

On November 18, 2024,

Plaintiff filed his original Complaint against Defendants Cynthia Correa;

Olivia Mercer ("Mercer"), both as an individual and as agent of West Coast

Escrow ("West Coast"); Pablo Sahagun ("Sahagun"); Yvette

Rios ("Rios"); and attorney Amanda Potier ("Potier").

Plaintiff's original Complaint alleged six causes of action for: (1) Fraud; (2)

Conspiracy to Defraud; (3) Intentional Misrepresentation; (4) Negligent

Misrepresentation; (5) Emotional Distress; and (6) Discrimination.

On January 6, 2026, Plaintiff filed

the operative Third Amended Complaint (the "TAC")

against numerous Defendants including moving Defendants Adriana

Munoz ("Munoz"), Spisak Enterprises Inc. dba Westwood Real Estate Group

("Westwood," sued as DOE 1) and Julie Spisak ("Spisak," sued as DOE 7)

alleging causes of action for: (1) Fraud; (2) Fraudulent Inducement;

(3) Intentional Misrepresentation; (4) Negligence; (5) Negligent

Supervision and Retention; (6) Breach of Fiduciary Duty; (7)

Violation of Business and Professions Code Section 17200; (8) [1]; and (9) Aiding

and Abetting a Fraud.

1.

Motions to Compel

Further Responses

On

April 3, 2026, Plaintiff filed a Motion to Compel Further Responses and

Production of Documents from Defendant Douglas Thompson.

On

April 16, 2026, Plaintiff filed a Motion to Compel Further Responses and

Production of Documents from Defendant Rizza Walker.

On

May 12, 2026, Thompson and

Walker each filed an Opposition.

As of June 22, 2026, Plaintiff has not

filed a Reply in support of either motion. Pursuant to Code Civ. Proc. §

1005(b), all reply papers must be filed and served at least five court days

before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any reply papers

now filed are untimely, and the Court exercises its discretion to refuse to

consider untimely filed papers. (Cal. R. Ct., Rule 1300(d); Mackey v. Bd. of

Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

2.

Motions to Tax

Costs

On March 6, 2026, WFG filed a

Memorandum of Costs.

On March 13, 2026, WFG filed an

Amended Memorandum of Costs.[2]

On March 23, 2026, Plaintiff filed a

Motion to Tax Costs Claimed by Defendant WFG National Title Insurance Company.

On March 24, 2026, WFG filed an

Opposition.

As of June 22, 2026, Plaintiff has not

filed a Reply. Again, pursuant to Code Civ. Proc. § 1005(b),

all reply papers must be filed and served at least five court days before the

hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any reply papers now filed

are untimely, and the Court exercises its discretion to refuse to consider

untimely filed papers. (Cal. R. Ct., Rule 1300(d); Mackey v. Bd. of Trustees

of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal

Standards

1.

Motions to

Compel Further Responses to Requests for Production of Documents (“RPDs”)

The demanding party may move for an

order compelling further response to the demand if the demanding party deems

that (1) a statement of compliance with the demand is incomplete, (2) a

representation of inability to comply is inadequate, incomplete, or evasive, or

(3) an objection in the response is without merit or too general. (Code Civ.

Proc. § 2031.310(a).)

“The motion shall set forth specific

facts showing good cause justifying the discovery sought by the demand,” and

“[t]he motion shall be accompanied by a meet and confer declaration under

Section 2016.040.” (Code Civ. Proc. § 2031.310(b).) On the other hand, the

respondent has the burden to justify objections in response to a motion filed

to compel further responses. (Fairmont Ins. Co. v. Superior Court, supra,

22 Cal.4th at p. 255.)

2.

Motion to Tax

Costs

“Except as otherwise expressly

provided by statute, a prevailing party is entitled as a matter of right to

recover costs in any action or proceeding.” (Code Civ. Proc. §

1032(b).)

Costs recoverable under Code of

Civil Procedure section 1032 are restricted to those that are both reasonable

in amount and reasonably necessary to the conduct of the litigation. (Code Civ.

Proc. §§ 1033.5 (c)(2), (3).) Costs “merely convenient or beneficial” to the

preparation of a case are disallowed. (Code Civ. Proc. § 1033.5(c)(2); see

Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774

(expenses for attorney meals incurred while attending local depositions not

“reasonably necessary”).)

A party challenging the amounts

claimed may file a motion to tax costs, which must be served and filed 15 days

after service of the cost memorandum. (Cal. Rules of Court, Rule 3.1700(b)(1),

8.278(c)(2).) “Unless objection is made to the entire cost memorandum, the

motion ... must refer to each item objected to by the same number and appear in

the same order as the corresponding cost item claimed on the memorandum of

costs and must state why the item is objectionable.” (Cal. Rules of Court, Rule

3.1700(b)(2).) ٢٢

“In ruling upon a motion to tax

costs, the trial court’s first determination is whether the statute expressly

allows the particular item and whether it appears proper on its face. If so,

the burden is on the objecting party to show the costs to be unnecessary or

unreasonable.” (Foothill De Anza Cmty. College Dist. v. Emerich (2007)

158 Cal.App.4th 11, 2930.) “Whether a cost item was reasonably necessary to the

litigation presents a question of fact for the trial court.” (Ladas v. Cal.

State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.)

B.

Meet and

Confer

Prior

to bringing a motion to compel further responses, the moving party must meet

and confer in good faith and must attach a declaration pursuant to Code of

Civil Procedure § 2016.040. "A meet and confer declaration in support of a

motion shall state facts showing a reasonable and good faith attempt, either in

person, by telephone, or by videoconference, to informally resolve each issue

presented by the motion." (Code Civ. Proc. § 2016.040.)

Plaintiff

attaches to each motion a declaration attesting to his meet and confer efforts.

Plaintiff attests that on April 14, 2026 he sent a meet and confer email to

counsel regarding Walker's responses and that Walker's counsel responded

offering dates to meet and confer. (Tyson Decl. (Walker), ¶ 5.) As to Thompson,

Plaintiff attests that on April 1, 2026 he sent a meet and confer letter to Thompson's

counsel requesting supplemental responses, production, and a privilege log. (Tyson

Decl. (Thompson), ¶ 5.) Plaintiff does not attest to any further meet and

confer efforts or conversations with either Walker or Thompson's counsel.

The

Court finds that Plaintiff has not shown a reasonable and good faith attempt to meet and confer in person, by telephone, or by videoconference as is required by Code of Civil Procedure § 2016.040.

Specifically as to Walker, the Court notes that Walker's counsel offered dates to meet and confer but Plaintiff provides no indication that he followed up with Walker's counsel on that offer.

As to both, the Court notes that mailing a letter demanding further responses, without more, is an inadequate meet and confer effort.

Although the

Court finds that the meet and confer efforts here were inadequate and not in compliance with statutory requirements, the Court proceeds with its analysis of Plaintiff's Motions. The Court notes, however, that failure to properly meet and confer is a consideration in awarding sanctions and therefore considers the preceding in its determination of the requested sanctions. (See Code Civ. Proc. § 2023.020 ("Notwithstanding the outcome of the particular discovery motion, the court shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct").)

C.

Discussion

1.

RPDs Motions

Plaintiff moves compel Defendant

Walker and Thompson to produce documents in response to Plaintiff's Requests

for Production of Documents, Sets One.

As to each motion, the Court notes that Plaintiff's Separate Statements

are not presented in accordance with the Rules of Court. Rule of Court 3.1345 requires a separate

statement to be "be full and complete so that no person is required to review

any other document in order to determine the full request and the full response"

and to include for each discovery request the text of the request, the text of

the response, a statement of the factual and legal reasons for compelling

further production and, if necessary, the text of all definitions, instructions

and other matters required to understand each request and response. (Cal. R.

Ct., Rule 3.1345(c).) Plaintiff's Separate

Statements purport to summarize Walker and Thompson's responses rather than set

forth the text of the response as required by the rules of Court. Furthermore, it appears that the requests

included in Plaintiff's Separate Statement use specially defined terms but no

definitions have been provided. Without the full text of the responses and the definitions

of any specially defined terms, the Court is unable to determine the adequacy

of the responses. Plaintiff's Separate

Statements are deficient.

Plaintiffs Motions to Compel Further

Responses to RFPDs, Sets One directed to Walker and Thompson are DENIED.

i.

Monetary Sanctions

In

conjunction with his Motions to Compel, Plaintiff seeks an award of monetary

sanctions in "an amount to be determined by the Court" as to both Walker and

Thompson. (See Walker Mot., p. 9:1-2; Thompson Mot., p. 7:4-5.) In their oppositions,

Walker requests the Court award monetary sanctions against Plaintiff in the

amount of \$2,310.00 (see Walker Opp., p. 13:2-4), and Thompson requests the

Court award monetary sanctions against Plaintiff in the amount of \$1,680.00

(see Thompson Opp., p. 12:22-24), both of which amounts are sought as

attorney's fees and costs incurred in opposing Plaintiff's motions.

The Court is required to impose monetary sanctions against a

party who unsuccessfully makes or opposes a motion to compel further responses

to Requests for Production, unless the Court finds that the responding party's

delay was substantially justified or caused by other circumstances that make

the imposition of monetary sanctions unjust. (See Code Civ. Proc. § 2031.310(h).)

Here, the Court has denied both

Plaintiff's motions to compel, thus monetary sanctions against Walker and

Thompson are not warranted and the Court DENIES Plaintiff's requests for monetary

sanctions.

As to Walker and Thompson's requests

for sanctions, the Court finds as follows:

Walker seeks a total of \$2,310.00 in

sanctions comprised of 6.7 hours preparing the Opposition to Plaintiff's motion

and an anticipated 1 hour preparing for and attending the hearing on

Plaintiff's motion, all billed at counsel's hourly rate of \$300.00/hr. (Beall

Decl. ISO Walker Opp., ¶¶ 12-13.)

Thompson seeks a total of \$1,680.00

in sanctions comprised of 4.6 hours preparing the Opposition to Plaintiff's

motion and an anticipated 1 hour preparing for and attending the hearing on

Plaintiff's motion, all billed at counsel's hourly rate of \$300/hr. (Beall

Decl. ISO Thompson Opp., ¶¶ 12-13.)

Walker and Thompson have

successfully opposed Plaintiff's motions and, accordingly, sanctions are

mandated pursuant to Code of Civil Procedure § 2031.310(h). The Court finds that Walker and Thompson's

counsel's hourly rate is reasonable for an attorney of similar skill and

experience in the Greater Los Angeles Area.

However, the Court finds that the hours expended for both Oppositions

are in excess of what is reasonable in opposing such motions and the Court

further finds that, since both motions are set to be heard on the same date and

time, the anticipated hours are unreasonably excessive.

Accordingly, the Court awards

sanctions as follows: (1) Walker is awarded a total of \$900, representing 2.5

hours spent in opposing Plaintiff's motion and .5 hours preparing for and

attending the hearing; and (2) Thompson is awarded a total of \$600,

representing 1.5 hours spent in opposing Plaintiff's motion and .5 hours

preparing for and attending the hearing.

2.

Motion to Tax

Plaintiff moves the Court to tax

WFG's costs in full or to substantially reduce the copying and research costs.

Plaintiff argues that: (1) WFG's costs labeled as "other" are not supported by

sufficient detail to evaluate necessity and reasonableness and should therefore

be taxed; and (2) the Court should require proof of WFG's filing and motion

fees. WFG argues in opposition that the

verified memorandum of costs is prima facie evidence of propriety and the

burden is on Plaintiff as the party seeking to tax costs to show that the costs were not reasonable. WFG argues that Plaintiff fails to provide any factual analysis as to why WFG's costs were not reasonable or were not necessary and so Plaintiff has failed to meet his burden of proof.

"A prevailing party is entitled 'as a matter of right' to recover costs in any action or proceeding unless a statute expressly provides otherwise." (Segal v. ASICS America Corp. (2022) 12 Cal.5th 651, 658.) (Segal sets forth the types of expenses that are and are not allowable as costs under section 1032. Specifically, subdivision (a) of section 1033.5 describes items that are 'allowable as costs,' subdivision (b) describes items 'not allowable as costs, except when expressly authorized by law,' and section 1033.5(c)(4) provides that '[i]tems not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion.'" (Ibid.)

To recover a cost, it must be reasonably necessary to the litigation and reasonable in amount. (Perko's Enterprises, Inc. v. RRNS Enterprises (1992) 4 Cal.App.4th 238, 244.) If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable

or necessary. (Ladas v. California State Automotive Assoc. (1993)

19 Cal.App.4th 761, 773-74; Hooked Media Group, Inc. v. Apple Inc.) (2020)

55 Cal.App.5th 323, 338 ("Hooked Media").) "However, more than a bare

objection is needed to rebut the presumption that fees were reasonable and

necessarily incurred." (State of California v. Meyer (1985) 174

Cal.App.3d 1061, 1075.) On the other

hand, if the items are properly objected to, they are put

in issue and the burden of proof is on the party claiming them as

costs. (Id.)

WFG's Amended Memorandum of Costs

seeks \$1,626.13 in costs, itemized as \$915.00 in filing and motion fees and

\$711.13 in "other" costs for court document copying fees and researching the

First American Data Tree for chain of title. (See Amended Memorandum of Costs,

filed 3/13/26.)

i.

Filing and Motion Fees

Filing

and motion fees are expressly allowable costs under Code of Civil Procedure §

1033.5(a)(1). And WFG's verified

Amended Memorandum of Costs is prima facie evidence of the propriety of the

items listed in it. (See *Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486-1487 (citing *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258).) Plaintiff's argument that WFG failed to provide supporting documentation justifying the filing and motion fee expenses misplaces the burden; it is Plaintiff's burden to show WFG's claimed filing and motions fees were unreasonable, not WFG's burden to show this cost was reasonable. (See *Hooked Media Group, Inc. v. Apple Inc.* (2020), *supra*, at p. 338.) Furthermore, Plaintiff's Amended Memorandum of Costs lists each fee incurred and the correlated filing. (See Amended Memorandum of Costs, filed 3/13/26, p. 3, Attachment 1g.) Plaintiff has not met his burden to show WFG's filing and motion fees are unreasonable. The Court finds WFG's filing and motion fees allowable and reasonable and Plaintiff's Motion to Tax WFG's filing and motion fees is DENIED.

ii.

"Other" Costs

In reviewing WFG's "other" costs, the Court finds that Plaintiff's objections to each have merit. With the exception of the \$46.13 fee for "First American Data Tree – Online Chain of Title Search," each fee listed in the "other" category is a Court fee for obtaining copies of filed documents.

(See Amended Memorandum of Costs, filed 3/13/26, Attachment 1g.) Code of Civil Procedure § 1033.5 does not

include in its list of items allowable as costs fees for obtaining copies of
filed documents. Furthermore, Rule of
Court 2.517 allows a party to a case remote access to electronic court records.
(See Cal. R. Ct., Rule 2.517.) Furthermore,
both the copy charges and WFG's claimed costs for online title research appear
to be the type of charges expressly disallowed as costs. (See Code Civ. Proc. §
1033.5(b)(2)(disallowing as costs "[i]nvestigation expenses in preparing the
case for trial); (b)(3)(disallowing as costs "photocopying charges, except for
exhibits").) Because WFG's "other" costs
are not recoverable costs, the court GRANTS Plaintiff's Motion to Tax WFG's
"other" costs.

III.

CONCLUSION

A.

Motions to

Compel Furthers

Plaintiff's Motion to Compel Further

Reponses to Requests for Production of Documents from Defendant Rizza Walker is

DENIED.

Plaintiff's Motion to Compel Further

Reponses to Requests for Production of Documents from Defendant Doug Thompson

is DENIED.

Plaintiff's Requests for Sanctions

against Walker and Thompson are DENIED.

Rizza and Walkers' Requests for

Sanctions against Plaintiff are GRANTED IN REDUCED AMOUNTS. The awarded sanctions are ordered to be paid

to Defense Counsel no later than August 24, 2026.

B.

Motion to

Tax

Plaintiff's Motion to Tax is GRANTED

IN PART. WFG's costs are taxed in the

amount of \$711.13.

[1] 1 There is no

eighth cause of action alleged in Plaintiff's Third Amended Complaint.

[2] WFG's May 6, 2026 initial

Memorandum of Costs sought attorney fees in the amount of \$1,641.74. (See Mem. Of Costs, 3/6/226.) WFG's May 13, 2026 Amended Memorandum of

Costs removes the request for attorney fees. (See Amended Mem. Of Costs,

3/13/26.) The Court proceeds with its

analysis with reference to the most recently filed Amended Memorandum of Costs,

which excludes the request for attorney's fees.